TAPFUMA ZHOU

Versus

MUNASHE KWASHIRA

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 06, 16 & 27 March, 23 June & 30 JULY 2026

Summons commencing Action- Acknowledgement of debt.

T.Nyapfumbi, for the plaintiff
Ms A. Duri, for the defendant

MPOKISENG DUBE J: The plaintiff's claim is for:

a) Payment of the sum of US$11 000.00 or its equivalent in Zimbabwean dollars using the prevailing bank rate, being the balance due to the Plaintiff.
b) Interest thereof at the prescribed rate calculated from the date of issue of summons to date of final payment.
c) Costs of suit.

The claim is entirely based on an acknowledgement of debt signed by the Defendant in favour of Plaintiff. Defendant herein resists payment on two fronts viz:

1. That while admitting to signing the acknowledgment of debt, he did so under duress.
2. That it is the plaintiff who voluntarily gave a sum of R11 500.00 for him (defendant) to buy gold for him for re-sale. Defendant claims to have been duped into buying fake gold. He then failed to return the cash. He then proposed that he and plaintiff work together at his mine so that the plaintiff can salvage the value of the lost cash. He believes Plaintiff did salvage the value and is not justified in making any further demands.

Brief background.

Plaintiff and defendant reside in the same neighbourhood. While Plaintiff is said to be a local businessman who owns two supermarkets, defendant's profile is not very clear. He borders on being a small scale miner, a buyer of gold, a pastor and somehow a peddler in the fashionable business of faith based healing. What is striking, though is that plaintiff is an

elderly man who is visually impaired while defendant is a healthy-looking 39-year-old at least at the time of his testimony.

Per plaintiff's declaration, sometime in May 2020, the defendant borrowed the sum of US$15 000.00 from the plaintiff to boost his mining ventures at MMT mining syndicate. The defendant acknowledged his debt to the plaintiff in the sum of US$15 000.00 and to date he has only paid the sum of US$4 000.00, leaving a balance of US$11 000.00. Despite numerous demands, the defendant has failed, neglected and or refused to pay the balance of US$11 000.00.

In his plea, the defendant claims that the plaintiff used extortion and undue pressure on him, resulting in the signing of an acknowledgement of debt and an overpayment of the actual sum due.

Since the signing of a liquid document was common cause at the commencement of trial, I directed that the defendant testify first as the onus to prove duress put to bear on him.

Defendant's Evidence

He stated under oath that he is aged 39, a pastor and a small-scale miner. He knew plaintiff as his congregant. He stood by his pleadings in the matter. He was advanced a sum of ZAR 11500.00 to buy gold for resale. He was sold fake gold. He failed to return the cash. He requested that the plaintiff work with him at the mine so that he could recover his lost value. He believes plaintiff recovered the full value.

That plaintiff promised to bring some investors who could help expand the mining operations. It was agreed that he would add plaintiff's name in the mine ownership papers so that such cash could be disbursed to buy heavy machinery. Such capital injection did not occur despite the addition of plaintiff's name at the "mines office" Such agreement was then terminated. Plaintiff refused to vacate the mine premises. They held a meeting at the plaintiff's shop. After such meeting plaintiff proceeded to defendant's parents' house. Thereat he threatened them with harm if he was not allowed to continue partaking in the mining business.

Defendant denied ever being advanced a sum of USD 15 000.00 by the Plaintiff. He thus denied owing him. He contends that he never agreed to repay such sum. He however

admits to signing a certain document at plaintiff's business premises in the company of some bulky men only introduced to him as "Comrades". That Plaintiff insisted that he should pay him a sum of USD 15000 before he could vacate his mine. That he is a member of parliament who could talk to the Vice President directly. A document was then prepared by one Doreen Chikume, Plaintiff's assistant before Defendant was bundled into a vehicle to a police station where an officer in charge thereat commissioned the document. The first signing happened on the 1st June 2021. The following day it was discovered that in the document defendant did not acknowledge his indebtedness. The said Doreen prepared yet another document before Defendant was again hauled before an officer in charge Entumbane, ZRP for commissioning. He denies being the author of the document.

On the 2nd July 2021 Defendants states that the document was prepared in the presence of his parents and the "comrades". They assaulted him and took his cash amounting to USD 120.00. They again attended at the mine where they assaulted him and took a further USD100.00

At the charge office, defendant testified that he would enter the officer in charge's office with the Plaintiff. At some point, he was abducted. His mother bundled into a car and was forced to sign papers ceding his mine to the Plaintiff. He had to approach the High Court for a spoliatory relief.

All in all, he paid a sum of USD4000.00 to Plaintiff so that his parents could be left alone. That plaintiff took some of his mining equipment and his transformer was broken. He now lives in constant fear due to Plaintiff's violent tendencies. He tendered and marked Exhibit "A" the affidavit he signed as an acknowledgment of debt.

Under cross examination Defendant admitted that the signature appearing on the acknowledgment of debt belongs to him, and so are the identity particulars. He admitted that the document was sworn to before a commissioner of oaths, who is a police officer at a police station. He admitted that he did not file a police report of assault or abduction at Entumbane, Luveve Police Stations, nor at any other police station for that matter. Neither does he have a Crime Report Number for extortion nor harassment of his parents. He admitted that after signing Exhibit "A" he paid to the Plaintiff instalments amounting to USD 4000.00 He stated

that he made police reports on some of the assaults, he gave such proof to his lawyers, but does not know what they did with it. He denied the obligation to pay the USD11 000.00

Defendant called next his mother as a witness.

Ripai Kwashira

This witness testified that she is aged 84 and mother of the defendant. That Plaintiff is known to her as the owner of shops in their locality. That on a day she can no longer recall, Plaintiff arrived at her home in a motor vehicle in the company of people she referred to as bouncers and bundled them in. While inside the vehicle, plaintiff told them that he was looking for the defendant. At that point, her husband suggested that they call defendant on his mobile number. After that, they were allowed to disembark from the vehicle.

The following morning, the defendant, who seemingly resides at his own separate abode, visited them and told them that they were required by the plaintiff at his shop. They duly proceeded to the shop where they were invited to the back of the shop. There, they found plaintiff in the company of the "bouncers" and his assistant, Doreen. Plaintiff then directed these words to her husband;

"Father, for me to move out of your son's mine, I need a sum of US$15 000.00"

To which her husband reacted by inquiring as to where his son would get such a hefty amount. To that Plaintiff responded"

"I am now very close to the vice President, I can make a call at any instant and your son would be ejected and I would take the mine"

After that plaintiff made a call. She did not follow the conversation. Her husband then asked defendant if he owed the plaintiff to which he flatly denied. Instead he claimed that plaintiff owed him as he had taken his machines comprising of a compressor, a hammer mill, a welding machine, a grinder. Further that plaintiff had damaged an electric transformer belonging to the defendant. That Defendant had to fix the said machine for USD 1500. Defendant also stated that Plaintiff took his truck load of gold ore which he went to process. The ore produced 30 grams of gold which the plaintiff never remitted to the defendant.

Plaintiff then suggested that defendant depose to an affidavit. At that, they were then told to go back home and return the following morning.

They duly returned the following morning wherein a meeting was again held with plaintiff. Defendant then proceeded to sign an affidavit at a police station. This witness was not present at the time and place of the actual signing. According to the witness defendant then suggested that he pays the money demanded by plaintiff. He then paid a sum of USD4000.00. That was in July 2021, but she can no longer recall the exact date.

After paying the money she realised that plaintiff was still occupying the mine together with its entire equipment.

Upon cross-examination, this witness admitted that there was a mining business between plaintiff and the defendant. She was not part of such business; for that reason, she could testify on the finer details of the enterprise. She stated that the assault perpetrated upon her was in form of being forcibly pushed into Plaintiff's motor vehicle. She did not make a police report regarding that. She had no documentary proof of the assault. She said at the meetings they held with Plaintiff, no violence was directed at her serve to say Plaintiff told them he is very close to the vice president. That made her afraid. She however did not make any police report of such a conversation nor harassment. Further under cross-examination, she stated that she knows Plaintiff very well, and they reside harmoniously with him in their locality. That it is Defendant who was kidnapped, not herself and her husband. Immediately, she changed and said she was kidnapped twice and the defendant thrice in town in her absence. It is Defendant who told her.

Asked if Defendant reported such to the police, she responded that he was taken to the Mines office to sign some documents, but he refused, he was taken to Bulawayo Central Police Station, who brought him to the High Court. All this she was told by defendant.

Further, that on the demanded USD15 000.00, defendant paid four instalments of USD1000.00 each. She was not present when an affidavit was signed for that reason she can not tell the court of the exact circumstances under which the document was signed.

Defendant closed his case

Plaintiff opened his case by calling the Plaintiff himself, Tapfuma Zhou. He testified to the effect that he is self-employed as a businessman who owns supermarkets around Bulawayo. He knows Defendant as a person who came to him with an offer to help pray for him so that he can regain his eyesight, since he is visually impaired. During the course of prayer sessions, the bond between them grew closer to such an extent that he took Defendant as good as his own son.

In May 2020 Defendant requested for financial assistance to the tune of USD15 000.00. Plaintiff requested that such transaction be recorded in an affidavit sworn to before a police officer at ZRP Entumbane. On the 2nd July 2021 Defendant executed another affidavit promising to him after acknowledging his indebtedness to him in the same amount.

That in fact, it is the Defendant who indicated that he is unable to pay the entire sum at once, but that he would be able to do so in monthly instalments of USD1500.00. On the 2nd of August, he paid a sum of USD1500.00 followed by USD1500.00 on the 7th September 2021. In November 2021, he again paid a sum of USD1000.00. Per the agreement, the whole debt ought to have been paid up by May 2022.

That after November 2021 defendant did not make any further payments. Plaintiff then instructed his legal practitioners to issue out summons as they did. The total sum owed by defendant is USD11000.00. His prayer is that the defendant be ordered to pay the said amount per his summons.

Asked where the acknowledgment of debt was executed, he stated that he remained in his vehicle as someone who is visually impaired while Defendant and his assistant Doreen went into the police offices. After signing, the affidavit was read back to him, and he was satisfied that it captured what the defendant had promised.

Asked what Doreen's role was, he stated that she entered the police station as his assistant who also doubles up as a driver, to ensure that defendant recorded what he had promised.

He denied kidnapping the defendant by himself nor with the help of "bouncers". He denied ordering the assault of defendant. He quipped that if that was true, charges ought to have been laid and he should have been arrested right at that police station. When put to him that defendant claims he used his political clout to threaten him, he stated that even in politics no one is allowed to coerce people.

He concluded by saying the defendant should be ordered to pay what he owes, as he needs the funds to undergo a surgical procedure in an effort to restore his sight.

Under cross examination, the witness was asked what the purpose of the loan was. He replied that defendant indicated that he wanted to boost his mining business. He denied that he only lent defendant a sum of ZAR11500.00. He denied that the purpose was to buy gold which venture failed. He insisted that it is defendant who proposed that his offer to pay be reduced to writing. He denied assaulting the defendant nor kidnapping him. He stated that his assistant drove them to the police station as defendant had no vehicle to ferry him there. He denied the existence of spoliation proceedings in the High Court. He denied assaulting nor in any manner assaulting defendant's parents. He however admitted that at some point defendant had promised that his repayment would come from his mine which he accepted but never materialised.

The Plaintiff called his witness.

Doreen Chikumwe

She testified that she is the plaintiff's assistant who doubles up as his driver. She corroborated the plaintiff's evidence that defendant first came into the picture as a faith healer of sorts. He then borrowed cash to the sum of USD15000.00 in the year 2020. Things came to a head when a medical doctor discouraged plaintiff from consulting spiritual healers over his loss of sight. He instead encouraged him to consult opticians in India to find professional help. Plaintiff then demanded his money back from defendant so that he could use it towards that. Defendant understood but indicated that he would not be able to repay the sum all at once. He requested to pay the sum in instalments of USD1500 for 10 months. Plaintiff accepted the proposal. They then drove to Entumbane police station to get the acknowledgment of debt reduced to a sworn statement under oath. She confirmed Annexure "A" to be the document in

question. She said her role was just to drive and to read to plaintiff what was recorded. When plaintiff was satisfied, she filed the document away. She denied witnessing any threats or actual violence perpetrated against the defendant or his parents.

Under cross-examination, this witness stated that she has been an assistant to the plaintiff since year 2015/2015. While admitting to being loyal to the plaintiff, she denied lying to curry a favour with the plaintiff. She denied the assertion that defendant was only given a sum of ZAR11500.00, instead, that she was present when he was handed the USD15000.00. She stated that defendant had just prepared a draft acknowledgment of debt. At the police station defendant then copied that draft and swore to its contents before a police officer who acted as a commissioner of oaths. The officers first inquired if he understood the contents, which he had personally handwritten, and he answered in the affirmative.

She denied that the defendant only signed the document after being kidnapped, his parents were harassed and threatened with political victimisation. She averred that no charges were ever opened against her, nor was she visited by any police officer for purposes of investigation. She concluded by mentioning that she is not aware of any High Court spoliation proceedings.

That concluded the plaintiff's case.

Both parties sought leave to file written closing submission, which I granted. The plaintiff undertook to file its submissions by 9/07/2026 while defendant undertook to do so by the 13/07/2026 with Plaintiff reserving the right to replicate by the 21/07/26.

Plaintiff duly filed its closing submissions while defendant did not. I thus hand this ruling without the benefit of defendant's closing submissions.

The Law

The acknowledgement of debt attached and marked Exhibit "A" is in the form of a sworn declaration. In the document, the defendant admits to owing the plaintiff the sum of USD15 000.00. He undertakes to pay. He places a condition that favours himself to the effect that as soon as payment is made in full, he will remove plaintiff as a third Director at MTT Mine. He took an oath before an Officer in Charge Entumbane Police station, who is an ex-

officio commissioner of oaths. Defendant does not deny his personal particulars as captured in that document. That can only mean he was the source of those particulars. He does not deny the signature affixed as his. He only contends that he did so under duress.

The law on what constitutes a liquid document is quite settled.

In *Sibanda v Machaidze* 2010 (1) ZLR 216 (H), the term liquid document was defined as follows:

> "The term liquid document is not defined in the rules. This court has however held that any clear, unequivocal and unambiguous written promise to pay a debt constitutes a liquid document. Thus, any letter, to the extent that it is clear, unequivocal and unambiguous and contains an acknowledgment of debt, can constitute a liquid document for the purposes of the rules on provisional sentence."

I find this legal proposition apt in the present case. The sworn declaration by the defendant is clear, unequivocal and unambiguous. It contains a promise to pay under oath. It thus qualifies squarely as a liquid document. Now the question is can this unequivocal acknowledgment of debt be vitiated by duress?

The elements necessary to set aside an acknowledgement of Debt on the grounds of duress were described by Corbett J, in *Ared & another v Astra furnishers (PTY) LTD* 1974 (1)SA 298 (C) as follows:

> "It is clear that a contract may be vitiated by duress (metus), the raison d'etre of the rule apparently being that intimidation or improper pressure renders the consent of the party subjected to duress no true consent.....duress may take the form of inflicting physical violence upon the person of a contracting party or inducing on him a fear by means of threats. Where a person seeks to set aside a contract, or resist the enforcement of a contract on the ground of duress based on fear, the following elements must be established:

1. The fear must be a reasonable one.
2. It must be caused by the threat of some considerable evil to the person concerned or their family
3. It must be a threat of imminent or inevitable evil.
4. The threat or intimidation must be unlawful and contra bonos mores
5. The moral pressure use must have caused damage"

To determine this legal question, one has to closely look at the facts of the matter. Firstly the defendant introduces himself as a pastor, a spiritual leader in other words. As to who

ordained him to the calling is not for this court to determine. However, their relationship of borrower and lender arises when defendant was in a vantage position of a pseudo saviour while plaintiff, as part of the flock desperately sought to have his sight restored.

Defendant claims in fact the cash regardless, of the amount, was for purposes of buying gold. When a man of the cloth dabbles in gold someone is bound to squeal. Unfortunately, this time around Defendant claims to have been the victim. He claims to have been duped into buying fake gold. I am not convinced with this narrative. 1st defendant does not mention the promise to restore plaintiff's sight. However, when it is brought up he does not deny it. He introduces the subject of sprucing up his ailing mining business. Despite owing the plaintiff he instead blames him for failing to bring up investors nor a solid capital injection. How could that be if plaintiff joined the venture for the simple purpose of recovering his ZAR 11500.00 according to defendant? I am not convinced by defendant's narrative. If anything he seemed to have wormed his way into plaintiff's trust through a false promise of miraculously restoring plaintiff's sight.

When it comes to the claims of duress, defendant's narration does not add up. He claims to have been assaulted several times. In fact his mother says he was kidnapped thrice and robbed twice albeit in her absence. Defendant himself does not testify to that. His mother claims she and her husband were kidnapped. The incident involves them being forcibly bundled into plaintiff's motor vehicle. While inside they are asked of defendant's whereabouts. Her husbands asks an obvious question "Don't you have his number to call him?" That question, immediately earns them their liberty. Surely could plaintiff have driven all the way to be asked an obvious question, which appeases him without even an answer? I do not think so. After that none of them lays charges at any police station.

The following morning defendant pops up. He tells his parents that they are required by Plaintiff at his shop. They flock there without protest. While there, a very civil meeting is held win which they freely participate. In the meeting, defendant's father is addressed by plaintiff as "Father" In that meeting, defendant denies owing plaintiff and nothing happens to him. Instead, he protests that plaintiff took his machines, damaged his compressor, stole a truckload of gold ore, processed it, earned 30 grams of gold, and squandered the proceeds. Per that witness, Plaintiff says and does nothing. According to this witness in the presence of two

burly "bouncers" or "comrades" as Defendant puts it. Plaintiff simply "suggests" that the Defendant deposes to an affidavit. After that the meeting is called off everyone goes home.

The following morning Defendant and his entourage again visits Plaintiff's shop, of their own accord. Only then did Defendant "suggest" to pay the money demanded i.e USD15 000.00. He thereafter voluntarily pays up USD4000.00.

I must say the above does not paint a picture of a ruthless loan shark, who wants to extract every coin from the hapless borrower. I thus reject the assertion by Defendant that he never owed the sum claimed and that he attested to a sworn acknowledgment of debt under duress.

I am of the respectful view that the actions of the defendant *in casu* are not indicative of someone who will stop at nothing to avoid paying a debt. It is for that reason that I make the following disposition:

Disposition

The plaintiff's claim succeeds, and the following order is made:

(a) Defendant to pay the sum of US$11 00.00 (Eleven thousand United States dollars) or the equivalent payable in Zimbabwean dollars (ZWL$) at the prevailing interbank rate on the day of payment.

(b) Interest on the said sum of US$11000.00 (Eleven thousand United States dollars), or the equivalent payable in Zimbabwean dollars (ZWL$) at the prevailing interbank rate on the day of payment, at the prescribed rate of 5% calculated from the date of Summons.

(c) Costs of suit on an attorney and client scale.

Task Vhiki Attorneys, plaintiff's legal practitioners
Pundu & Company, defendant's legal practitioners